

STATE OF NEW YORK

8204--A

2025-2026 Regular Sessions

IN ASSEMBLY

May 5, 2025

Introduced by M. of A. CLARK -- read once and referred to the Committee on Education -- recommitted to the Committee on Education in accordance with Assembly Rule 3, sec. 2 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the education law, in relation to requiring immediate notification of a child's parent when an allegation of child abuse in an educational setting has been made regarding such child

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

- 1 Section 1. Subdivisions 1 and 3 of section 1128 of the education law,
2 as added by chapter 180 of the laws of 2000, are amended to read as
3 follows:
- 4 1. Where the subject child has made the allegation: (a) [~~promptly~~]
5 immediately notify the parent of such child that an allegation of child
6 abuse in an educational setting has been made regarding such child and
7 promptly provide the parent with a written statement prepared pursuant
8 to regulations of the commissioner setting forth parental rights,
9 responsibilities and procedures under this article; (b) where a school
10 administrator receives a written report, promptly provide a copy of such
11 report to the superintendent; and (c) promptly forward such report to
12 appropriate law enforcement authorities. In no event shall reporting to
13 law enforcement be delayed by reason of an inability to contact the
14 superintendent.
- 15 3. Where a person other than the subject child or the parent of a
16 subject child has made the allegation: (a) [~~promptly~~] immediately notify
17 the parent of the subject child that an allegation of child abuse in an
18 educational setting has been made regarding [~~his or her~~] such child and
19 promptly provide the parent with a written statement prepared pursuant
20 to regulations of the commissioner setting forth parental rights,
21 responsibilities and procedures under this article; (b) ascertain from

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[~~-~~] is old law to be omitted.

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1 the person making such report the source and basis for such allegation;
2 (c) where a school administrator receives a written report, promptly
3 provide a copy of such report to the superintendent; and (d) promptly
4 forward such report to appropriate law enforcement authorities. In no
5 event shall reporting to law enforcement be delayed by reason of an
6 inability to contact the superintendent.
7 § 2. This act shall take effect on the thirtieth day after it shall
8 have become a law.